26CHCV00934 26CHCV00934

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F30%2F2026

Source SHA-256: a0f3068a213b69b22c04e6e73ebf53e19870af2c39cc698009eb96184d0500a1

Case Number: 26CHCV00934 Hearing Date: July 30, 2026 Dept: F49

Dept. F49

Date: 7/30/26

Case Name: Chicago Title Insurance Company vs. Avalon
Ranch, LLC; Jennifer Mietzner aka Jennifer Graves; Edmond Mietzner; and Does
1-50

Case No. 26CHCV00934

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 30, 2026

MOTION TO STRIKE

Los Angeles Superior
Court Case No. 26CHCV00934

Motion filed: 6/9/26

MOVING PARTY: Defendants Avalon Ranch, LLC, Jennifer
Mietzner, and Edmond Mietzner

RESPONDING PARTY: Plaintiff Chicago Title Insurance Company

NOTICE: OK

RELIEF REQUESTED: An order from this Court striking Plaintiff's Complaint.

TENTATIVE RULING: The Motion to Strike is DENIED.

BACKGROUND

This action arises from loss payments made by Plaintiff Chicago Title Insurance Company ("Plaintiff") due to Defendants' alleged failure to secure release of a deed of trust encumbering property commonly known as 29703 Jackson Street, Castaic, CA 91384 (the "Subject Property"). On March 5, 2026, Plaintiff filed the Complaint against Defendants Avalon Ranch, LLC ("Avalon"), Jennifer Mietzner aka Jennifer Graves ("Jennifer"), Edmond Mietzner ("Edmond") (collectively, "Defendants") and Does 1 through 50, alleging the following causes of action: (1) breach of warranty, (2) restitution based on unjust enrichment, (3) money paid, and (4) equitable indemnity. On June 26, 2026, at the request of Plaintiff, Edmond was dismissed from the action.

On May 26, 2026, Defendants filed their operative First Amended Answer.

On June 9, 2026, Defendants filed the instant Motion to Strike (the "Motion").

On July 17, 2026, Plaintiff filed an Opposition.

On July 21, 2026, Avalon and Jennifer filed a Reply.

On July 24, 2026, Plaintiff filed a Notice of Non-Receipt of the Reply.

On

July 27, 2026, Avalon and Jennifer filed a response to the Notice of Non-Receipt.

ANALYSIS

Upon motion by a party, a court may "strike any irrelevant, false, or improper matter inserted in any pleading … [or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]" (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

I. PRELIMINARY CONSIDERATIONS

A. Service of the Reply

Plaintiff asserts that it did not receive Defendants' reply papers either by mail, facsimile, or electronic transmission and requests that the Court disregard them. (Notice of Non-Receipt, at p. 2.) Defendants have filed proof of service indicating that the Reply and corresponding evidentiary objections were served by registered process server Jimmy Lizama ("Lizama") on July 23, 2026 by personal delivery to Plaintiff's authorized agent for service of process. (Proof of Service, July 27, 2026.) The proof of service is signed by Lizama under penalty of perjury. (Ibid.) Defendants' counsel also attests that he served the papers via email on July 21, 2026. (Response to Notice, Esbin Decl., ¶ 2.)

Lizama's declaration of service establishes a presumption of proper service (Evid. Code, § 647), and Plaintiff does not present any evidence to rebut the presumption.

The Court accordingly finds that service of the reply papers was properly made and considers the moving, opposition, and reply papers.

B. Meet and Confer

Before filing a motion to strike, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Id., § 435.5, subd. (a)(4).)

Defendants’ counsel attests to exchanging several written communications with Plaintiff’s counsel regarding whether Plaintiff’s counsel was authorized to appear on its behalf. (Esbin Decl., ¶¶ 5-16.) Written communication does not satisfy the in-person or telephonic meet and confer requirement of Code of Civil Procedure section 435.5. Nevertheless, given that failure to adequately meet and confer is not grounds for denial and the parties have fully briefed the issues, the Court proceeds to consider the merits of the Motion.

C. Propriety of Bringing a Motion to Strike

Plaintiff argues that the Motion, despite its label, is really a motion to disqualify Plaintiff’s counsel and is accordingly not the proper subject of a motion to strike. (Opp’n, at p. 5.)

“A motion to strike under [Code of Civil Procedure] section 435 et seq. is traditionally used to reach pleading defects that are not subject to demurrer.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) A pleading filed by a corporation must be subscribed by the corporation’s attorney. (Ibid.; Code Civ. Proc., § 446, subd. (a).) A pleading that is not properly subscribed is subject to a motion to strike. (CLD Construction, at p. 1146.)

Here, the Complaint is signed by Plaintiff's counsel, David M. Kritzer ("Kritzer"). Defendants do not dispute that Kritzer and co-counsel Paul McGeough ("McGeough") are active members of the State Bar or contend that the Complaint was not subscribed by an attorney licensed to appear in the State of California. Defendants instead contend that because Kritzer and McGeough practice under the Fidelity National Law Group ("FNLG") firm name, the pleading is defective for the following reasons: (1) FNLG is not registered as a professional law corporation in the State of California, and (2) FNLG is the legal division of Fidelity National Financial, Inc. ("FNF"), a corporation not registered to transact business in California.

Insofar as the Motion challenges the subscription to the Complaint as invalid, the Court does not find that the Motion seeks inappropriate relief.

D. Defendants' Standing to Challenge the Representation

Plaintiff also contends that Defendants lack standing to challenge Plaintiff's choice of representation. "'Standing generally requires the plaintiff be able to allege injury, that is, an invasion of a legally protected interest. [Citation.]'" (Jarvis v. Jarvis (2019) 33 Cal.App.5th 113, 131.) The requirement for standing is implicit in motions to disqualify counsel. (Ibid.)

Defendants contend that they are not seeking a conflicts-based disqualification but are instead challenging the conformity of the Complaint to the law. (Reply, at p. 10.) Defendants assert that a defendant always has standing to challenge the pleadings as defective under Code of Civil Procedure section 436. (Ibid.) As challenges to pleadings based on unauthorized representation are permitted under section 436 (E.g., CLD Construction, supra, 120 Cal.App.4th, at p. 1146), the Court presumes standing on the narrow issue of whether Kritzer and McGeough, as attorneys practicing under the FNLG name, are authorized to represent Plaintiff in this action.

E. Request for Judicial Notice

A court
may take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States" and of records of any court of this state. (Evid. Code, § 452, subds. (c), (d).) A court must take judicial notice of such acts if a party requests it, gives adequate notice to each adverse party, and furnishes the Court with sufficient information to enable it to take judicial notice. (§ 453.)

Upon taking notice of court records,
the court accepts as true only that (1) they were filed, and (2) the assertions therein were made; the court does not take notice of the truth of their contents. (See Joslin v. H.A.S. Insurance Brokerage (1986) 184 Cal.App.3d 369, 374-375; see also Day v. Sharp (1975) 50 Cal.App.3d 904, 916.) Similarly, the truth of matters asserted in documents representing official acts of state agencies is not subject to judicial notice. (Lent v. Cal. Coastal Commission (2021) 62 Cal.App.5th 812, 854.)

Defendants
request that the Court take judicial notice of the following records of the California Secretary of State: (1) the qualification history of FNF, specifically the Certificate of Surrender effective October 29, 2015; and (2) search results showing the absence of an entity registered under the name "Fidelity National Law Group." (Request for Judicial Notice, at p. 2.) Defendants further request that the Court take judicial notice of the search results of the California State Bar Law Corporations Program showing the absence of a certificate of registration issued to FNLG, and of Plaintiff's Complaint and Defendant's Amended Answer in this action. (Id., at pp. 2-3.)

The
foregoing qualify as acts of a state agency or records of this Court, and are subject to judicial notice. The Court accordingly takes judicial notice of the existence (or absence) of the documents indicated.

F.
Evidentiary
Objections

Defendants

object to the declarations of Patrick Davis and McGeough submitted by Plaintiff in support of its Opposition.

The following objections are OVERRULED: Nos. 1-9.

The following objections are SUSTAINED: No. 10. The entirety of the declaration of Jacob Ancona, attached to the declaration of McGeough as Exhibit 1, is inadmissible hearsay. As this objection is sustained, Objection Nos. 11 and 12 to specific portions of the Ancona declaration are moot.

II. MOTION TO STRIKE

Defendants seek to strike the Complaint in its entirety on the ground that FNLG does not have authority to appear in California courts because it is not registered as a professional law corporation in California and because FNF is not qualified to transact business in the state. (Mot., at pp. 12-19.) Defendants imply that Kritzer and McGeough, practicing under the FNLG name, do not have authority to appear on Plaintiff's behalf.

"[A] corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director, or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (CLD Construction, supra, 120 Cal.App.4th, at p. 1145.)

As noted above, it is undisputed that Kritzer and McGeough are licensed to practice law in the State of California. This dispute centers on whether Plaintiff may maintain this action with Kritzer and McGeough, who practice under the FNLG name, as counsel of record. As discussed below, the Court answers that question in the affirmative.

A. Plaintiff Is Not Represented By Unauthorized Attorneys.

(1) Registration as a Law Corporation is Not a Prerequisite to Representation.

Defendants argue that FNLG's failure to register as a California professional law corporation precludes FNLG attorneys from representing Plaintiff and renders Kritzer's subscription to the Complaint invalid. (Mot., at p. 11.) Defendants assert that filing a complaint under an unregistered firm name is akin to filing a complaint without counsel. (Ibid.) The law does not support this construction.

Business and Professions Code section 6160 defines a law corporation as "a corporation which is registered with the State Bar of California and has a currently effective certificate of registration from the State Bar pursuant to the Professional Corporation Act." Registered law corporations with a current registration certificate are entitled to practice law in California. (Bus. & Prof. Code, § 6160.)

A law firm not registered as a professional law corporation, however, does not engage in the unauthorized practice of law solely by virtue of its failure to register. (Steven M. Garber & Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 820 [no unauthorized practice found where individual attorneys working for law firm were admitted to practice in California].)

California law recognizes that an in-house attorney, whether an officer of the corporation or not, is an agent separate from the corporation that he represents in the context of litigation. (Gutierrez v. G & M Oil Co., Inc. (2010) 184 Cal.App.4th 551, 560, 564.) It is thus the individual attorney's ability to appear, and not the corporation's entitlement to practice law, that is relevant to whether a Complaint is properly subscribed.

Here, Kritzer, who signed the Complaint, is an attorney admitted to practice in California. Plaintiff is accordingly not an entity represented by counsel unauthorized to appear.

(2) State Bar Advisory Opinion Nos. 1987-91 and 1989-113 Do Not Bar the Representation.

Defendants further contend that State Bar opinions relating to corporate representation do not authorize FNLG attorneys to represent Plaintiff in this matter. Relevant opinions identified by Defendants are Formal Opinion Nos. 1987-91 and 1989-113. (State Bar Formal Opn. No. 1987-91, 1987 WL 109707, hereinafter State Bar Opinion No. 1987-91; State Bar Formal Opn. No. 1989-113, 1989 WL 253261, hereinafter State Bar Opinion No. 1989-113.) “Although not binding on courts, formal opinions from the California State Bar may be persuasive authority. [Citations.]” (Winter v. Menlo (2025) 110 Cal.App.5th 299, 310.)

State Bar Opinion 1987-91 responds to the question of whether an insurer “may appoint in-house counsel to defend the interest of its insureds against claims brought by third parties pursuant to the insurance policy.” (State Bar Opinion No. 1987-91, at *1.) In that opinion, the State Bar determined that an insurance company’s legal division, which effectively operated as in-house counsel for the insurance company, did not engage in the unauthorized practice of law by retaining its in-house counsel to represent third party insureds in litigation against them. (Id., at *2-3.) The State Bar reasoned that, in situations where there was no coverage dispute, the insured and the insurer shared a common interest in defeating or settling the claim, presenting no disqualifying conflicts. (Id., at *5.) Provided that in-house counsel could “maintain professional independence comparable to that of an outside law firm,” the representation did not violate any ethical duties. (Id., at * 4.) The State Bar also concluded that the use of a firm name for the insurer’s legal division was permissible as long as it was not misleading regarding the relationship between the insurer and the legal division. (Id., at * 6.)

The issue presented in State Bar Opinion No. 1989-113 was whether an attorney representing a parent corporation could undertake representation of a third-party to sue a wholly-owned subsidiary, whom the attorney never represented, where there was no prospect that the parent corporation would become a party to the lawsuit. (State Bar Opinion No. 1989-113, at *1.) The State Bar concluded that representation of the third party was permissible provided that certain conditions were met, determining that the parent corporation and the subsidiary were distinct entities and that the representation did not violate the duty of loyalty because it was not adverse to the parent corporation whom the attorney represented. (Id., at *3-4.)

Defendants argue that these opinions confirm that Plaintiff and FNF are separate entities and that, regardless of the characterization of FNLG, the opinions restrict FNLG attorneys from representing Plaintiff as FNF's subsidiary. The Court disagrees.

The foregoing opinions respond only to the questions of whether representation is permitted in the particular circumstances presented. As Plaintiff notes, they are not prohibitive in nature. (Opp'n, at p. 11.) Insofar as the opinions explicitly caution against certain activity, it is to warn against violation of ethical duties by ensuring that the representation does not interfere with the attorney's exercise of professional judgment, that nomenclature used by in-house counsel is not false or misleading, and that disclosures are made where appropriate. (State Bar Opinion No. 1987-91, at *6; State Bar Opinion No. 1989-113, at *6.) They do not bar an in-house attorney from representing the corporate affiliate of his employing company.

The overriding principle articulated in these opinions regarding who in-house counsel may represent is the avoidance of conflicts of interest. (State Bar Opinion No. 1987-91, at *4-5.) Here, Defendants do not suggest that Plaintiff and FNF have divergent interests that would preclude FNLG attorneys from representing Plaintiff, and any suggestion to this effect would broach issues requiring Defendants to establish a cognizable interest in the representation. (See Moreci v. Scaffold Solutions, Inc. (2021) 70 Cal.App.5th 425, 436 [party seeking conflict of interest disqualification had no standing in the absence of an attorney-client relationship or cognizable confidential or fiduciary relationship].)

(3) Court Rule 9.46 Does Not Apply.

Defendants contend that California Rule of Court, rule 9.46 reinforces the limitation on in-house counsel's ability to represent an affiliated entity. (Mot., at pp. 12-13.)

Rule 9.46 is part of Division 4 of Title Nine of the California Rules of Court, and by its own terms governs appearances in California courts by persons who are not licensed by the State Bar, specifically defining an attorney eligible to practice under the rule as one who is an active licensee in good standing in a United States jurisdiction “other than California.” (Cal. Rules of Court, rule 9.46, subds. (a)(2), (c)(1).) The rule does not govern appearances by attorneys licensed to practice in California.

Here, Kritzer and McGeough are licensed to practice in California courts. Rule 9.46 accordingly does not apply.

(4) Corporations Code Sections 2105 and 2203 Do Not Bar the Representation.

Defendants also argue that Corporations Code sections 2105 and 2203 provide an independent statutory ground to strike the Complaint. (Mot., at p. 18.) Corporations Code section 2105 provides, in relevant part: “A foreign corporation shall not transact intrastate business without having first obtained from the Secretary of State a certificate of qualification.” (Corp. Code, § 2105, subd. (a).) A foreign corporation transacting intrastate business without first obtaining a certificate of qualification “may not maintain any action or proceeding upon any intrastate business so transacted in any court of this state” until it has obtained a certificate of compliance and paid a penalty to the Secretary of State. (§ 2203, subd. (c).)

Defendants contend that these statutes bar FNF from employing in-house counsel to represent Plaintiff because FNF surrendered its certificate of qualification to transact business in the state. (Mot., at pp. 18-19.)

Defendants bear the burden of proof on the issue and must show that: “(1) the action arises out of the transaction of intrastate business by a foreign corporation; and (2) the action was commenced by the foreign corporation prior to qualifying to transact intrastate business.” (United Medical Management Ltd. v. Gatto (1996) 49 Cal.App.4th 1732, 1740.)

Here, Defendants fail to carry their burden of establishing that an unqualified foreign corporation commenced this action. FNF is not the complaining party in this action. Although Defendants present ample evidence that FNF is not registered to do business in California—a fact that Plaintiff does not dispute—Defendants submit no evidence that Plaintiff, who commenced and is maintaining the action, is not qualified to transact business in the state. Defendants suggest that the Complaint may be "understood as filed by FNF's law division on behalf of FNF's wholly owned subsidiary," implying that the entities are one and the same for the purposes of Corporations Code sections 2105 and 2203. (Mot., at p. 19.) As the authority cited by Defendants themselves confirms, however, in the absence of evidence that Plaintiff is the alter-ego of FNF, a parent corporation must be viewed as distinct from its wholly-owned subsidiary. (State Bar Opinion No. 1989-113, at *5.)

Failure of FNF to obtain a certificate of qualification is accordingly insufficient grounds to strike the Complaint.

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Defendants' Motion to Strike the Complaint.

Moving party to give notice.